

Merchant Agreement

This Agreement is made on 27 February 2019 between arvato Financial Solutions, Gütersloher Straße 123, 33415 Verl, Germany (hereinafter "AFS") and Kiez Kaffee GmbH, Oranienstraße 190, 10999 Berlin, Germany (hereinafter "Merchant"), together the "Parties".

1. Scope of Services

AFS shall provide the services described in Annex 1 (the "Services") to Merchant in accordance with this Agreement and the service levels agreed therein. Merchant shall provide all information reasonably required for the performance of the Services.

2. Term and Termination

This Agreement enters into force on the Effective Date and shall run for an initial term of twenty-four (24) months. It renews automatically for successive periods of twelve (12) months unless terminated by either Party with three (3) months' written notice prior to the end of the then-current term. The right to terminate for cause remains unaffected.

3. Fees and Payment

Merchant shall pay the fees set out in Annex 2. Invoices are payable within thirty (30) days of receipt without deduction. Late payments accrue interest at nine (9) percentage points above the base rate of the Deutsche Bundesbank.

4. Confidentiality

Each Party shall keep confidential all information obtained from the other Party in connection with this Agreement and shall use it solely for the purposes of this Agreement. This obligation survives termination for a period of five (5) years.

5. Data Protection

Where AFS processes personal data on behalf of Merchant, the Parties shall conclude a data processing agreement pursuant to Article 28 of the General Data Protection Regulation (GDPR). Both Parties shall implement appropriate technical and organisational measures to protect personal data.

6. Governing Law

This Agreement shall be governed by the laws of the Federal Republic of Germany, excluding the UN Convention on Contracts for the International Sale of Goods (CISG).

7. Dispute Resolution

The courts of Baden-Baden shall have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

8. Force Majeure

Neither Party shall be liable for any failure to perform its obligations where such failure results from events beyond its reasonable control, including natural disasters, war, pandemics or governmental action, provided that the affected Party notifies the other without undue delay.

9. Assignment

Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, which shall not be unreasonably withheld.

10. Audit Rights

Merchant may, upon thirty (30) days' written notice and no more than once per calendar year, audit AFS's compliance with this Agreement during normal business hours. AFS shall provide reasonable assistance and access to relevant records.

11. Anti-Corruption and Compliance

The Parties warrant that they have not offered, promised or granted any undue advantage to public officials or business partners in connection with this Agreement and will not do so. A breach of this warranty entitles the other Party to terminate without notice.

12. Change of Control

Either Party may terminate this Agreement with immediate effect if the other Party undergoes a change of control, meaning the acquisition of more than fifty percent (50%) of its voting rights by a third party.

13. Notices

All notices under this Agreement shall be in writing and delivered by registered mail or e-mail to the addresses set out above. Notices are deemed received on the next business day.

For arvato Financial Solutions:

Managing Director

For Kiez Kaffee GmbH:

Authorised Signatory